

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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MARK ENOE & ZULEMA JONES-ENOE,

Plaintiffs

**COMPLAINT AND
JURY DEMAND**

-against-

Docket No. 15CV5747

CITY OF NEW YORK, POLICE OFFICER OSCAR
WDOWIAK #12497, POLICE OFFICER RALEIGH
#21415, POLICE OFFICER AGUILAR #11042, POLICE
OFFICER LUI #6380, SERGEANT ARANCIBIA #119,
OFFICERS JOHN DOE #1-3,

Defendants.

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Plaintiffs Mark Enoe and Zulema Jones-Enoe, by their attorney Amy Robinson, of Stoll, Glickman & Bellina, LLP, for their complaint alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiffs seek relief through 42 U.S.C. § 1983 for violations of their Fourth and Fourteenth Amendment rights, in addition to violations of the laws and Constitution of the State of New York.
2. The claim arises from a May 3, 2014 incident in which officers of the New York City Police Department (“NYPD”), acting under color of state law, intentionally and willfully subjected Plaintiffs to, among other things, unlawful search and seizure.
3. Plaintiffs seek monetary damages (special, compensatory, and punitive) against Defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

4. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution and under 42 U.S.C. §§ 1983 and 1988 and the laws and Constitution of the State of New York.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3) and (4), 1367(a) and the doctrine of pendent jurisdiction.

6. Venue is laid within the Southern District of New York in that Defendant City of New York is located, and a substantial part of the events giving rise to the claim occurred, within the boundaries of the Southern District.

PARTIES

7. Plaintiffs MARK ENOE and ZULEMA JONES-ENOE resided at all times here relevant in Kings County, City and State of New York.

8. The City of New York (“City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. Police Officers WDOWIAK, RALEIGH, LUI, AGUILAR, and Sergeant ARANCIBIA were, at all times here relevant, officers of the NYPD, and as such were acting in the capacities of agents, servants, and employees of the City of New York. On information and belief, at all times relevant hereto, the aforementioned officers were involved in the decision to seize

Plaintiffs without probable cause or failed to intervene in the actions of their fellow officers when observing them seize Plaintiffs without probable cause. All officers are sued in their individual capacities.

10. Police Officers John Doe #1-3, whose identities are currently unknown to Plaintiffs, were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacity of agents, servants and employees of the City of New York. On information and belief, at all times relevant hereto, defendant officers were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene in the actions of their fellow officers when they observed them arresting Plaintiffs without probable cause. John Doe officers are sued in their individual capacities.

11. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

12. Within 90 days of the events giving rise to this claim, Plaintiffs filed written Notices of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of the Notices, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

13. On Saturday, May 3, 2014, Zulema Jones-Enoe had an appointment on the Upper West Side of Manhattan. At approximately 12:30 P.M., after the appointment was over, Mark Enoe, Ms. Jones-Enoe's husband, picked her up to drive her back to their home in Brooklyn.

14. Mr. Enoe was driving a silver Toyota that he and his wife have owned for many years. Ms. Jones-Enoe sat in the front passenger seat.

15. As Mr. Enoe drove east on 96th Street towards the FDR Drive, a police car flashed its lights behind him. Plaintiffs heard police sirens, followed by police commands to pull over. Another police car pulled up directly in front of Plaintiffs' car.

16. Mr. Enoe pulled over and stopped the car.

17. Plaintiffs had not committed any crime, nor had they violated any traffic regulations.

18. Using bullhorns, police officers ordered Plaintiffs to put their hands in the air. Plaintiffs complied, and raised their hands above their heads.

19. A few moments later, an NYPD officer opened the passenger side door, grabbed Ms. Jones-Enoe's arm, and screamed at her to get out of the car.

20. The officer then pulled Ms. Jones-Enoe out of the car and pushed her to the ground.

21. A different officer was pointing a gun Mr. Jones-Enoe's head.

22. As she was being brought to the ground, Ms. Jones-Enoe asked the officers what was going on and why they were doing this to her.

23. The officers did not answer Ms. Jones-Enoe's questions. Defendant officers handcuffed her.

24. Defendant officers removed Mr. Enoe from the car and placed him against the driver's side of the car.

25. Mr. Enoe asked the officers why they had pulled him over. They responded that the car's license plates came up as stolen.

26. Ms. Jones-Enoe said that was not possible, because she and her husband were the legal owners of the car.

27. At that point, Ms. Jones-Enoe, who was still on the street, lying face down on her stomach, handcuffed, and who had just had a gun pointed at her head, began to hyperventilate.

Her chest was tight and she was unable to breathe normally.

28. Defendant officers told her to calm down.

29. As she continued lying on the street, Ms. Jones-Enoe heard an officer state that the license plate that the officers had looked up came back as stolen from Michigan.

30. Another officer approached Ms. Jones-Enoe and turned her onto her back. She remained in handcuffs.

31. Mr. Enoe, still surrounded by officers and leaning against his car, continued to ask the officers why he and his wife had been pulled over, and what had caused them to run the license plates.

32. The officers responded that Plaintiffs' license plates came up stolen from Michigan. They asked Mr. Enoe questions regarding the license plates and car, including whether he owned a second vehicle such as a Dodge.

33. Mr. Enoe truthfully told the officers that the license plates on his Toyota are the original plates, that they match the registration, that he and his wife had owned the car for more than ten years, and that they do not own another car.

34. Ms. Jones-Enoe continued to have labored breathing. An officer picked her up, leaned her against the car, and asked why she was upset.

35. Ms. Jones-Enoe responded that she thought the situation was unfair because she and her husband did nothing wrong. She asked for the officers' badge numbers.

36. Officers Raleigh and Lui stood over Ms. Jones-Enoe. She was shaking and crying.

37. Finally, a police officer removed the handcuffs from Ms. Jones-Enoe's wrists and helped her into the car.

38. Ms. Jones-Enoe asked Officers Raleigh and Lui why they had pointed a gun at her face.

39. Officer Wdowiak handed Mr. Enoe a ticket for hanging a flag near the rearview mirror. The officers then got back into their patrol cars and left.

40. Plaintiffs appeared in court to contest the ticket. It was ultimately dismissed in July 2014.

41. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate Plaintiffs' rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiffs.

42. During all of the events above described, Defendants acted maliciously and with intent to injure Plaintiffs.

DAMAGES

43. As a direct and proximate result of the acts of Defendants, Plaintiffs suffered the following injuries and damages:

- a. Violation of their rights pursuant to the Fourth Amendment of the United States Constitution to be free from an unreasonable search and seizure of their persons;
- b. Violation of their rights pursuant to the Fourteenth Amendment of the United States Constitution to due process;
- e. Physical pain and suffering;
- f. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety; and
- g. Loss of liberty.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983

FALSE ARREST & MALICIOUS PROSECUTION

44. The above paragraphs are here incorporated by reference.

45. The officer defendants wrongfully and illegally arrested, detained and imprisoned, and maliciously prosecuted Plaintiffs, and failed to intervene in each other's obviously illegal actions.

46. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment against Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

47. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

48. All of this occurred without any illegal conduct by Plaintiffs.

49. The ticket issued by defendant officers was dismissed at Plaintiffs' first court appearance.

50. Defendants acted under color of law and conspired to deprive Plaintiffs of their civil, constitutional, and statutory rights to be free from unreasonable search and seizure and to due process of law pursuant to the Fourth and Fourteenth Amendments to the United States Constitution and are liable to Plaintiffs under 42 U.S.C. § 1983.

51. Plaintiffs have been damaged as a result of Defendants' wrongful acts.

SECOND CAUSE OF ACTION

42 U.S.C. § 1983

MUNICIPAL LIABILITY

52. The above paragraphs are here incorporated by reference.

53. The City is liable for the damages suffered by Plaintiffs as a result of the conduct of

their employees, agents, and servants, in that: after learning of their employees' violation of Plaintiffs' constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue; and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular use of excessive force and false arrests by its police officers, but has nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the violation of Plaintiffs' constitutional rights in this case.

54. The City's continuing failure to deter police misconduct has led to an increase in the number of lawsuits for repeat routine misconduct by the same officers, same units, and same precincts.

55. The number of claims against the NYPD doubled between 2004 and 2014, to a record high of 9,570 lawsuits filed in 2012. The suits cost taxpayers more than \$1 billion dollars during that time period.¹

56. In 2012, New York City paid out more than \$131 million for the fiscal year; in 2011, it paid out more than \$166 million; and in 2010, it paid out \$128 million.² More than 40% of the settlements from 2011 stemmed from excessive force and false arrest.

57. The widely held assumption is that civil rights lawsuits deter police misconduct. "The

¹ Barry Paddock, Rocco Parascandola, John Marzulli, & Dareh Gregorian, *Exclusive: Detective is NYPD's most-sued cop, with 28 lawsuits filed against him since 2006*, N.Y. DAILY NEWS, Feb. 16, 2014, <http://www.nydailynews.com/new-york/lawsuits-nypd-double-decade-costing-taxpayers-1b-article-1.1615919#ixzz2ttDX4ZkE>; see also Colleen Long & Jennifer Peltz, Associated Press, *Nearly \$1B in NYC police payouts*, Yahoo! News (October 14, 2010, 7:44 PM), <http://news.yahoo.com/ap-investigation-nearly-1b-nyc-police-payouts.html> (reporting that, in the decade ending in 2010, the City paid out nearly one billion dollars to resolve claims against the NYPD).

² City of New York, The Mayor's Management Report Preliminary Fiscal 2009, 6, available at http://www.nyc.gov/html/ops/downloads/pdf/mmr/0209_mmr.pdf.

purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails.” *Wyatt v. Cole*, 504 U.S. 158, 161, (1992) (citing *Carey v. Phipps*, 435 U.S. 247, 254-257, (1978)). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” *Hudson v. Michigan*, 547 U.S. 586, 598 (2006) (citing *Corr. Servs. Corp. v. Malesko*, 534 U.S. 61, 70 (2001) and *Nix v. Williams*, 467 U.S. 431, 446, (1984)).

58. However, the City of New York has isolated NYPD officers from accountability for its civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens. The result is that civil rights lawsuits have no deterrent value to the City, the NYPD, or NYPD officers. “It is almost axiomatic that the threat of damages has a deterrent effect, surely particularly so when the individual official faces personal financial liability.” *Carlson v. Green*, 446 U.S. 14, 21, (1980) (citing *Imbler v. Pachtman*, 424 U.S. 409, 442 (1976)) [footnote omitted].

59. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even when the same officers are named in numerous lawsuits. In 1999, then-Comptroller Alan Hevesi reported that there was a “total disconnect” between the settlements of even substantial civil claims and NYPD action against officers. Nothing has changed since 1999. The result is a system in which the City pays vast sums of money to settle claims of constitutional violations, but the NYPD does nothing to investigate or address the underlying causes of such violations.

60. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated the Law Department from the discipline of police officers. Civil

rights lawsuits against police officers have no impact on the officers' careers, regardless of the officers' lawsuit liability, even after multiple lawsuits.

61. At a City Council hearing on December 12, 2009, and on other occasions, the City Council, Government Operations Committee has been alerted to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability. Nonetheless, the City Council has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units, and precincts are disproportionately responsible for New York City civil rights lawsuits.

62. The event underlying Plaintiffs' factual allegations was not an isolated incident. The City has been aware for some time, from lawsuits, Notices of Claim, complaints filed with the Civilian Complaint Review Board ("CCRB"), City Council hearings, newspaper reports, cases resulting in declined prosecutions and dismissals, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

63. Moreover, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same precinct, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations against Plaintiffs.

64. The City has also been alerted to the regular use of stop and frisks by its police officers, which disproportionately target people of color, despite the lack criminal evidence that such stop and frisks actually produce, and despite the humiliation, inconvenience, and constitutional violations that the majority of law-abiding people, mostly in communities of color, suffer as a result. In 2008, of the 531,159 New Yorkers were stopped by the police, 465,413 (or 88%) were innocent of any crime. From the total, 271,602 (51%) were Black; 167,111 (32%) were Latino; and 57,407 (11%) were white. In 2007, of the 468,732 New Yorkers stopped by the police, 407,923 (87%) were innocent. From the total in 2007, 242,373 (52%) were Black, 142,903 (31%) were Latino; and 52,715 (11%) were white.³

65. The City is also aware that the misconduct does not stop at the regular use of stop and frisks to violate the civil rights of innocent people. In 2008, more than half (51%) of the summonses issued by NYPD officers were dismissed for legally insufficient evidence. Police officers have repeatedly told New York City news investigations that their supervisors pressure them into reaching “performance goals” or quotas, resulting in the violation of innocent New Yorker’s civil rights.⁴

66. The CCRB, a City police oversight agency, often finds complainants lack credibility based in part on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to the CCRB. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense,

³ See New York Civil Liberties Union, *Stop and Frisk Campaign: About the Issue*, (last visited July 22, 2015) <http://www.nyclu.org/issues/racial-justice/stop-and-frisk-practices>.

⁴ See Jim Hoffer, *NYPD Officer Claims Pressure to Make Arrests*, WABC News (Mar. 2, 2010, 10:37 PM), <http://7online.com/archive/7305356/> and Jim Hoffer, *Kelly Responds to Our NYPD Quotas*, WABC News (May 25, 2010, 3:31 PM), <http://7online.com/archive/7461355/>.

nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

67. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. In 2002, the percentage of officers who were the subject of substantiated CCRB complaints who received no discipline was 47%; in 2007, it was 75%.⁵ The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which the police commissioner has done on many occasions. This entire procedure provide so many opportunities for meritorious complaints of false arrests to be dismissed or disregarded that there is no credible, effective oversight of police department employees, despite an apparently elaborate set of oversight mechanisms.

68. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even

⁵ See Robert A. Perry, New York Civil Liberties Union, *Mission Failure: Civilian Review of Policing in New York City 1994-2006* (2007), http://www.nyclu.org/files/ccrb_failing_report_090507.pdf (NYCLU report detailing the failure of the NYPD to follow up on substantiated CCRB complaints, among other failures by the City and the CCRB to address police misconduct).

occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

69. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. As one federal judge has written: “Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration—through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department—there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged. *Colon v. City of New York*, No. 09-CV-8, 2009 WL 4263362, at *2 (E.D.N.Y. Nov. 25, 2009).

70. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate Plaintiffs’ civil rights, without fear of reprisal.

71. Plaintiffs have been damaged as a result of the deliberate indifference of the Defendant City.

THIRD CAUSE OF ACTION
FALSE ARREST & FALSE IMPRISONMENT

72. The above paragraphs are here incorporated by reference.

73. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of

liberty without probable cause.

74. Defendants intended to confine Plaintiffs, Plaintiffs were conscious of their confinement and did not consent to their confinement.

75. Defendants, their officers, agents, servants and employees, were responsible for Plaintiffs' arrest, detention and imprisonment during this period of time.

76. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiffs sustained the damages described above.

FOURTH CAUSE OF ACTION
MALICIOUS PROSECUTION

77. The preceding paragraphs are here incorporated by reference.

78. Defendants, acting with malice, initiated a prosecution against Plaintiffs and caused them to be prosecuted.

79. Defendants did not have probable cause to initiate proceedings.

80. The proceedings were terminated in Plaintiffs' favor when a judge dismissed the traffic ticket in July 2014.

81. Defendants have deprived Plaintiffs of their civil, constitutional, and statutory rights and have conspired to deprive them of such rights. They are liable to Plaintiffs under 42 U.S.C. § 1983, New York State common law, and the New York State Constitution.

82. As a result of the malicious prosecution implemented by defendants, Plaintiffs were damaged.

FIFTH CAUSE OF ACTION
ASSAULT & BATTERY

83. The above paragraphs are here incorporated by reference.

84. By seizing, approaching, intimidating, screaming at, questioning, drawing guns upon,

and forcibly grabbing and handcuffing Plaintiffs, Defendants made Plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and offensive touching.

85. Defendants engaged in and subjected Plaintiffs to immediate harmful and offensive touching and battered them without their consent.

86. Defendants, their officers, agents, servants and employees, were responsible for Plaintiffs' arrest, detention, and imprisonment during this period of time.

87. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiffs sustained the damages described above.

SIXTH CAUSE OF ACTION
NEGLIGENT HIRING & RETENTION

88. The above paragraphs are here incorporated by reference.

89. Upon information and belief, defendant City, through the NYPD, owed a duty of care to Plaintiffs to prevent the physical and mental abuse sustained by Plaintiffs.

90. Upon information and belief, defendant City, through the NYPD, owed a duty of care to Plaintiffs because under the same or similar circumstances a reasonable, prudent and careful person should have known Plaintiffs' vehicle was not stolen and should have anticipated an injury to Plaintiffs or those in a position similar to Plaintiffs as a result of this conduct.

91. Upon information and belief, defendant officers were incompetent and unfit for their positions.

92. Upon information and belief, defendant City knew or should have known through exercise of reasonable diligence that the officer defendants were potentially dangerous and had previously falsely arrested civilians without probable cause.

93. Upon information and belief, defendant City's negligence in hiring and retaining the

officer defendants proximately caused Plaintiffs' injuries.

94. Upon information and belief, because of the defendant City's negligent hiring and retention of defendant officers, Plaintiffs incurred damages described above.

SEVENTH CAUSE OF ACTION
NEGLIGENCE

95. The above paragraphs are here incorporated by reference.

96. Defendants owed a duty of care to Plaintiffs.

97. Defendants breached their duty to Plaintiffs by failing to check that Plaintiffs' vehicle was stolen, arresting Plaintiffs without probable cause, drawing their guns at Plaintiffs, and causing damage to Plaintiffs.

98. Defendants, their officers, agents, servants and employees, were responsible for Plaintiffs' arrests, detentions, and imprisonments during this period of time.

99. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiffs sustained the damages described above.

EIGHTH CAUSE OF ACTION
RESPONDEAT SUPERIOR

100. The above paragraphs are here incorporated by reference.

101. Defendants' tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

102. As a result of Defendants' tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, Plaintiffs were damaged.

WHEREFORE, Plaintiffs demand judgment against the Defendants, jointly and severally, as follows:

- A. In favor of Plaintiffs in an amount to be determined by a jury for each of Plaintiffs' causes of action;
- B. Awarding Plaintiffs punitive damages in an amount to be determined by a jury;
- C. Awarding Plaintiffs reasonable attorneys' fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiffs demand a trial by jury.

DATED: July 22, 2015
Brooklyn, New York

TO: City of New York
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Officers John Doe #1-3

Respectfully submitted,



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